GENERAL CONDITIONS OF HIRE

The hirer shall take the equipment in the condition in which it is delivered and shall be deemed to have inspected it and found it fit for the purpose for which it is hired. The hirer shall use the equipment only at the site named in the order and shall not move it to any other place without the written consent of the owner. The hirer shall operate the equipment only through trained persons and shall follow every instruction in the manual supplied with it. The hirer is responsible for the equipment from the time it is delivered until the time it is collected, whether or not it is in use, and shall bear the cost of any loss, theft or damage during that time. The owner may inspect the equipment at any reasonable time and may take it back at once if, in the owner's opinion, it is being misused or put at risk. Hire charges run from the day of delivery to the day of collection, both days included, and are payable in advance every week. Charges continue during any period in which the equipment cannot be used because of weather, site conditions, strikes or any other cause outside the owner's control. If any payment is overdue for more than seven days, the owner may stop the hire and collect the equipment without further notice, and the hirer shall allow the owner and its agents access to the site for that purpose. The hirer shall insure the equipment for its full replacement value with an insurer acceptable to the owner and shall produce the policy on request. Fuel, lubricants, daily cleaning and minor adjustments are the responsibility of the hirer, while scheduled servicing will be done by the owner at times agreed with the hirer. The hirer shall report any breakdown within two hours and shall not attempt any repair other than those described in the manual. The owner will repair or replace faulty equipment as soon as it reasonably can but is not liable for any loss caused by the delay, including loss of production, idle labour or penalties under the hirer's own contracts. At the end of the hire the hirer shall return the equipment clean and in the same condition as delivered, fair wear and tear excepted, and shall pay for any cleaning or repair needed to restore it. These conditions apply to every hire unless the owner agrees otherwise in writing, and no terms printed on the hirer's own order forms shall have any effect.